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Deadly wave - California already has nation's strictest gun control laws

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After a deadly wave of mass shootings in the United States last year — including one in Buffalo, New York, and another at a school in Uvalde, Texas — that collectively killed 31, California's Democratic-controlled Legislature responded by quickly passing more than a dozen laws meant to prevent gun violence in the Golden State.

Now, with California reeling from one mass shooting after another that claimed at least 24 lives in Monterey Park, Half Moon Bay and a Central Valley farming town, lawmakers are asking themselves once again what more they can do to stem the violence.

California already ranks among the states with the most restrictive gun control laws. And by some measures they are working: the state has among the lowest rates of gun deaths, according to the Centers for Disease Control and Prevention, and a report by the Public Policy Institute of California found the state had a lower rate of mass shootings than the national average.

Dr. Amy Barnhorst, associate director of the Violence Prevention Research Program at UC Davis, said the state's "patchwork of sensible evidence-based firearm laws" has contributed to those better outcomes.

"It's hard to say it's this law or that law in particular, but all of them working in concert together probably is what reduces our rates," Barnhorst said. "We have something in place for a lot of different scenarios, which is really important because ultimately the one thing that mass shooters have in common is their guns, but they're an increasingly diverse group and have a whole variety of motivations."

Courts weaken laws

But California's aggressive laws can do only so much. Several recently passed state gun laws also have been eviscerated by the federal courts and, given the expansive interpretation of the constitutional right to bear arms by the current conservative majority of the Supreme Court, any new laws passed by California lawmakers could suffer a similar fate.

Gov. Gavin Newsom, who has made gun control a core tenet of his political identity, acknowledged the limits of state-level policy even as he defended California's record.

"I'm proud of California," Newsom said during a news conference Tuesday in Half Moon Bay, where seven people were killed Monday in what appears to be a case of workplace violence. "We've led the nation. We've led the national conversation in gun safety. No state in America has done more than the state of California."

"But we can't do this alone. And with all due respect, we feel like we are," he said, calling out House Speaker Kevin McCarthy (R-Bakersfield) for saying "not one word" about the recent shootings.

Democrats in the California Legislature say they aren't waiting for federal action. They have a list of bills lined up this year that would bolster an already extensive list of rules restricting who can buy and sell firearms.

"While California is in the forefront in gun control policy, this tragedy reminds us that our work is not done," said Assemblymember Mike Fong (D-Alhambra), who represents Monterey Park.

Newsom supports proposed legislation to limit who can be issued a license to carry concealed weapons, one of the

few gun control measures that failed in the Legislature last year. Senate Bill 2 was reintroduced more than a month before this month's tragedies, and already promises to be one of the main gun bills for the 2023 legislative session. The measure aims to comply with a Supreme Court decision in June that deemed restrictive concealed-carry laws unconstitutional, while still maintaining tight regulations around who can obtain the permits.

Assemblymember Jesse Gabriel, an Encino Democrat and co-chair of the California Legislative Gun Violence Prevention Working Group, also unveiled a trio of proposals to regulate firearms. One would establish an excise tax on ammunition and guns in California to help finance violence prevention and school safety efforts, while another would allow residents suffering from mental health crises to voluntarily add their name to a "do not sell" list. The third measure would prohibit someone who has a domestic violence protective order filed against them from buying or owning guns foran additional three years after the order has lifted.

Other proposals by state lawmakers include a ban on selling body armor, which has been used by some mass shooters, and another to make the possession of a so-called ghost gun a felony.

The proposed changes to California's gun laws are relatively minor compared with the suite of new laws Newsom signed in 2022. One established a "firearm industry standard of conduct" and will allow, beginning in July, for local governments, the state Department of Justice and gun violence survivors to sue for egregious violations of state sales and marketing regulations. Another was modeled after Texas' vigilante abortion law and increased legal liability for the gun industry, while two more limited firearms advertising to minors and further restricted ghost guns.

"There's a lot of evidence that our gun safety laws are working and saving people's lives," Gabriel said. "But obviously when we see these kinds of horrific incidents, it's a reminder that we have a lot more work to do."

The massacres in California this month occurred less than a year after President Biden signed what was considered the most significant federal gun control law in recent history, after both political parties struck a deal and limited its scope. That law encourages states to pass "red flag" laws — which allow for the temporary removal of firearms from those who pose a public safety risk — expands background checks and now prohibits romantic partners, in addition to spouses, from owning firearms if they've been convicted of domestic abuse.

Still, proponents of stricter firearms rules have long argued that bolder action is needed to end gun violence. They've called for a federal ban on assault weapons and high-capacity magazines, and for even stronger red flag laws and background checks.

"The federal government needs to do its job," Newsom said.

Tough law expired

Sen. Dianne Feinstein authored the nation's first nationwide ban on assault weapons during her first term in Washington, overcoming opposition from the powerful National Rifle Association to get it passed, but Congress allowed the landmark legislation to expire in 2004. According to University of Massachusetts researcher Louis Klarevas, the author of "Rampage Nation: Securing America from Mass Shootings," the number of mass shootings declined during the ban and grew more frequent after the law's sunset.

Feinstein attempted without success to reenact the assault weapons ban, including in the aftermath of the attempted assassination of then-Arizona Rep. Gabrielle Giffords in 2011 in Tucson and the mass killing at Sandy Hook Elementary in Connecticut in 2012. She reintroduced another bill on Monday to ban military-style assault weapons and high-capacity magazines.

Obstacles to efforts to enact more stringent gun laws extend beyond the partisan-gridlocked halls of Congress and into the federal court system, where Republicans and gun rights groups have found great success in blocking stringent firearms laws.

Several 2nd Amendment organizations have intentionally brought cases before a federal judge in San Diego who has struck down California's longtime, statewide ban on assault weapons and, more recently, an important provision of California's latest bill that authorizes private lawsuits against the gun industry.

Sam Paredes, executive director of Gun Owners of California, warned that his group would sue to block the implementation of additional gun restrictions, including the concealed-carry bill, should it pass.

"I fully expect that the Legislature is going to cram a piece of legislation down," Paredes said. "But ultimately we will challenge it in court and we will win."

Challenges ahead

Ari Freilich, state policy director for Giffords Law Center, acknowledged those challenges.

"It's a real obstacle and it's not a new one," he said. "There's been essentially a cottage industry of lawyers and gun industry-funded groups that … sue the state of California to try to dismantle what we've built over a few decades."

Freilich said the Supreme Court's decision against broad concealed-carry laws last year has effectively "invited a new wave of lawsuits to essentially relitigate what had been previously settled matters."

But that doesn't mean California should pump the brakes on its efforts, Freilich said.

"It is important to note how, zooming out, despite the constant threat and burden of defending lawsuits against what California has built," he said, "what we have built has been successfully implemented in large part and is making progress."

Senate Republican Leader Brian Jones of Santee said new legislation should be worked on in a bipartisan manner.

"California has over 100 gun control laws on the books, many of them forced through the Legislature on party-line votes. I think a partisan approach on major issues such as this one does a disservice to everyone," he said in a statement. "If California truly wants to tackle gun violence in our state, we should take a page out of Congress's book and work on a bipartisan measure."

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